

FACULTY OF LAW, BHABHA UNIVERSITY, BHOPAL

Jatkhedhi, NH-12, Hoshangabad Road, Bhopal-462026

EXAMINATION SCHEME

L L.B., Semester - III

Subject wise marks allotted and corresponding credits

S. No.	Subject Code	Name of Subject	Marks Allotted						Total Marks	Credit/Contact Hours Per Week			Total Credit
			Theory		Internal Assignment		Practical / Viva-Voice			L	T	P	
			Max. Marks	Min. Marks	Max. Marks	Min. Marks	Max. Marks	Min. Marks					
01.	LLB-301	Right to information & Information Technology Law (Right to Information Act. 2005 & Information Technology Act. 2000)	80	32	20	8	0	0	100	5	1	0	6
02.	LLB-302	Jurisprudence	80	32	20	8	0	0	100	5	1	0	6
03.	LLB-303	Constitutional Law of India	80	32	20	8	0	0	100	5	1	0	6
04.	LLB-304	Administrative Law	80	32	20	8	0	0	100	5	1	0	6
05.	LLB-305	Code of Civil Procedure	80	32	20	8	0	0	100	5	1	0	6
06.	LLB-306	Drafting Pleading and Conveyancing (Clinical -I)	90	36	0	0	10	4	100	5	0	1	6
Total			480	196	100	40	10	4	600	30	5	1	36

L : Lecture

T : Tutorial

P : Practical

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LL.B. PART - II SEMESTER - III

PAPER - I Right to Information & Information Technology Law

Unit -I

Introduction to Right to Information (RTI)

1. Concept and Evolution
 - a. Definition and significance of RTI.
 - b. Historical background and development of RTI in India.
 - c. International perspectives on RTI.
2. Legal Framework
 - a. Overview of the Right to Information Act, 2005.
 - b. Constitutional basis of RTI in India.
 - c. Comparison with RTI laws in other countries.
3. Objectives and Importance
 - a. Empowerment of citizens.
 - b. Transparency and accountability in governance.
 - c. Promoting good governance.
4. Scope and Applicability
 - a. Who can request information?
 - b. What constitutes "information" under the Act?
 - c. Public authorities covered under the Act.

Unit - II

(A.) Procedures and Mechanisms

1. Filing an RTI Application
 - a. Steps to file an RTI application.
 - b. Format and content of the RTI application.
 - c. Time limits for filing and responding to RTI requests.
2. Role of Public Information Officers (PIOs)
 - a. Duties and responsibilities of PIOs.
 - b. Appointment and training of PIOs.
 - c. Handling and processing of RTI requests by PIOs.
3. Appeal Process
 - a. First Appeal: Grounds, procedure, and time limits.
 - b. Second Appeal: Role of the Central and State Information Commissions.
 - c. Case studies on appeals and decisions.

4. Exemptions and Limitations
 - a. Specific exemptions under Section 8 and 9 of the RTI Act.
 - b. Partial disclosure and severability.
 - c. Third-party information and confidentiality.

(B) Role of Information Commissions

1. Central Information Commission (CIC)
 - a. Composition, powers, and functions.
 - b. Procedures for complaints and appeals.
 - c. Landmark decisions and their impact.
2. State Information Commissions (SICs)
 - a. Composition, powers, and functions.
 - b. Procedures for complaints and appeals.
 - c. Case studies on significant SIC rulings.
3. Enforcement and Penalties
 - a. Powers of Information Commissions to impose penalties.
 - b. Measures to ensure compliance by public authorities.
 - c. Challenges in enforcement and compliance.

Unit - III

(A) Impact and Challenges

1. Impact of RTI on Governance
 - a. Success stories of RTI in promoting transparency.
 - b. Role of RTI in combating corruption.
 - c. RTI and citizen participation in governance.
2. Challenges and Issues
 - a. Misuse and abuse of RTI.
 - b. Problems faced by information seekers and PIOs.
 - c. Institutional and procedural challenges.
3. Recent Developments and Reforms
 - a. Amendments to the RTI Act.
 - b. Judicial interpretations and landmark judgments.
 - c. Proposals for strengthening the RTI regime.

(B) Practical Application and Future Prospects

1. RTI and Media
 - a. Role of media in promoting RTI.
 - b. Use of RTI by journalists for investigative reporting.
 - c. Case studies on RTI and media exposure.
2. RTI and Civil Society
 - a. Role of NGOs and civil society organisations.
 - b. Community-led RTI initiatives and success stories.
 - c. Advocacy for RTI awareness and training programs.
3. Future of RTI in India
 - a. Technological advancements and RTI (e-governance, digital RTI applications).

- b. Prospects for expanding RTI to the private sector.
- c. Vision for RTI in enhancing democratic governance.

Unit - IV

(A) Introduction of Information Technology Act. 2000

- 1. Origin and meaning of Cyberspace
- 2. Cyberspace vs. Physical space
- 3. Legal Issues in Cyberspace
- 4. Need of Regulation for Cyberspace
- 5. Different Models of Cyberspace Regulation

(B) Information Technology Act

- 1. A brief overview of Information Technology Act, 2000
- 2. IT Act 2000 vs. IT Amendment Act 2008
- 3. Relevant provisions from Indian Penal Code, Indian Evidence Act, Bankers Book Evidence Act, Reserve Bank of India Act, etc.

(C) Concept Of Electronic Signature And Digital Signature

- 1. Relevance of Signature
- 2. Handwritten signature vs Digital Signature
- 3. Technological Advancement and development of signature
- 4. Digital Signature and Cryptography, Public Key and Private Key, Public Key Infrastructure
- 5. Electronic Signature
- 6. Electronic Signature vs. Digital Signature
- 7. UNCITRAL Model Law on Electronic Signature

Unit - V

(A) E – Commerce

- 1. Meaning and Origin of E-commerce
- 2. Tools of E-Commerce and Models of e-commerce
- 3. UNCITRAL Model Law on E-commerce
- 4. E-Commerce under IT Act, 2000
- 5. Issues and challenges of E-Commerce

(B) Cyber Crimes

- 1. Cyber Crimes - Definitions and Nature
- 2. Conventional Crimes vs Cyber Crimes
- 3. Types of Cyber Crimes
- 4. Cyber offences covered under the Information Technology Act, 2000
- 5. Cyber offences and other laws (IPC, POCSO etc.)
- 6. Issues relating to investigation of cybercrimes in India
- 7. Cyber Contravention

Suggested Readings:

- 1. Dr. J.N. Barowalia, Commentary on the Right to Information Act (Universal Law Publishing, Delhi)(2024).
- 2. Dr. Niraj Kumar, Handbook on Right to Information (Bharat Publishers) (2024).

3. Sudhir Naib, The Right to Information Act 2005: A Handbook (Oxford India Handbooks, India)(2013).
4. Pankaj K. P. Sheryaskar, RTI Act in India: Futures and Implications (McGraw Hill Education (India) Private Limited, India)(2017).
5. Commentary on Right to Information Act, 2005 by R Chakraborty (Taxmann)(2024).
5. Pankaj K. P. Sheryaskar, Transparency and Right to Information, Latvia (EU)(2012).
6. Shailesh Gandhi and Prahlad Kachare, RTI Act – Authentic Interpretation of Statute (Vakils, Feffer and Simons Pvt. Ltd., Mumbai) (2016).
7. P. K. Das, Handbook on RTI Act (Universal Law Publishing, Delhi)(2016).
8. Vakul Sharma, Information Technology Law and Practice (Universal LexisNexis)(2023)
9. Krishna Pal Malik, Information Technology & Cyber Law (Allahabad Law Agency)(2023)
10. Justice Yatindra Singh, Information Technology Law (Law & Justice Publishing Co.)(2023).
11. N S Nappinai, Technology Laws Decoded (LexisNexis)(2017).
12. Shobha Singh Thakur et al., Emerging trends in cyber crimes and cyber laws in india (Book Rivers)(2023).



L.L.B. PART-II SEMESTER - III
PAPER – II JURISPRUDENCE
(LEGAL METHOD AND BASIC THEORY)

UNIT - I Introduction

Definition on the term "Jurisprudence", definition of law, kinds of law, justice & its kinds

UNIT - II Schools of Jurisprudence

Natural law school, analytical school, historical school, sociological school, realistic school.

UNIT - III Source of law

Legislation, precedents concept of stare decises, customs.

UNIT - IV Legal Rights: the concept

Rights, kinds, meanings, duty, meaning and kinds, relation between right and duty, personality, nature of personality, status of the unborn minor, lunatic, drunken and persons, corporate personality, dimension of the modern legal personality: legal personality of non-human beings.

UNIT – V Possession and ownership: the concept

Kinds of possession, kinds of ownership, difference between possession and ownership, liability, condition of imposing liability, strict liability, vicarious liability, obligation, nature and kind.

RECOMMENDED BOOKS:-

Bodenheim Jurisprudence- the philosophy and method of law(1996)

Fitzgerald,(ed) Salmond on Jurisprudence (1999) tripathi.

W. Friendmann, Legal theory(1999)

V.D.Mahajan, Jurisprudence and Legal theory(1996)

M.D.A. Freeman (ed.) Liroy's introduction to jurisprudence(1994), Sweet and Maxwell Paton

G.W. Jurisprudence (1972) Oxford, ELBS

H.L.A. Hart, The concepts of Law (1970) oxford, ELBS

Roscoe pond, Introduction to the philosophy of Law (1998 reprint) Universal Delhi

Dias, S.N. Jurisprudence: A Study of Indian Legal Theory (1985), Metropolatin, New Delhi

Vidhishastra Ek Adhyaan (Jurisprudence) – Balkrishna and Sharma PHI Learning 2010.

L.L.B. PART-II SEMESTER - III
PAPER – III CONSTITUTIONAL LAW OF INDIA - I

UNIT - I

Definition of constitution, constitution law, constitutionalism, salient features of Indian constitution, welfare states, preamble union and its territory formation of new states citizenship.

UNIT - II

State, fundamental rights, and their position under the constitution right to equality right to freedom, right against exploitation, right to freedom of religion cultural and educational rights, rights to constitutional remedies.

UNIT - III

Directive principles of state policy, their relevance, comparison with fundamental rights, fundamental duties, correlation between fundamental rights, fundamental duties and directive principles of state policy.

UNIT - IV

Parliament, union, executive, president and vice president, council of ministers; attorney general, legislative procedure, money bill & other financial matters; union judiciary.

UNIT - V

Centre state relationship, services under union & state tribunals, election. Emergency amendment of the constitution.

RECOMMENDED BOOKS:

1. V.N.Shukla- Constitution of India
2. J.N.Pandey- Constitution of India
3. M.P.Jain- Constitution of India
4. Sarma- Introduction to the constitution of India-PHI
5. Rai- Fundamental rights and their enforcement-PHI
6. शर्मा : भारत का संविधान PHI
7. रायल : भारत का संविधान
8. डॉ. पी.कृष्णियादी : भारत का संविधान

L.L.B. PART-II SEMESTER - III
PAPER – IV ADMINISTRATIVE LAW

UNIT - I

Meaning, definitions, nature, historical development, sources, relationship with constitutional law, droid administrative, rule of law and separation of powers, classification of administrative functions and distinction between them.

UNIT - II

Delegated legislation and its kinds, administrative directions and distinction between delegated legislation and administrative directions, control over delegated legislation procedural, judicial and parliamentary control, principles of natural justice.

UNIT - III

Administrative discretion and judicial control of discretionary powers, act of state, tortious and contractual liability of the state.

UNIT - IV

Government privileges in legal proceedings, Estoppel and waiver, official secrets and right to information, likpal, lokayukt and central vigilance commissions of inquiry.

UNIT - V

Administrative tribunal's merits, demerits, reasons for growth, distinction between court and tribunals, public corporation, classification characteristics control remedies constitutional and ordinary.

RECOMMENDED BOOKS:-

1. G.K.Kwati- The Arbitration and conciliation law of india
2. Avatar Singh- Arbitration and conciliation
3. Goyal- Arbitration and conciliation Act.
4. Jayakumar- Administrative Law, PHI
5. Avatar Singh : मध्यस्थ एवं सुलम एवं अनुक्रम लिपिक
6. Inderjeet Malhotra : मध्यस्थ एवं सुलम अधिनियम 1986

L.L.B. PART-II SEMESTER - III
PAPER – V CODE OF CIVIL PROCEDURE, 1908

UNIT - I Introduction

Concepts:- Affidavit, order, judgment, degree, plaint, restitution, execution, decree holder, judgment-debtor, manse profits, written statement, distinction between decree and judgment and between decree and order.

Jurisdiction:- Kinds, hierarchy of courts, suit of civil nature, scope and limits, res sub juice and res judicata, foreign judgment enforcement, place of suing, institutes of suit, parties to suit: joinder mis-joinder or non-joinder of parties: representative suit, frame of suit: cause of action, alternative disputes resolution(ADR), summons.

UNIT - II Pleading:- Rules of pleading, singing and verification, alternative pleading, construction of pleadings, plaints: particulars, admission, return and re junction, written statement: particulars, rules of evidence, set off and counter claim, distinction, discovery, inspection and production of documents, interrogatories, privileged documents, affidavits.

UNIT - III Appearance, Examination and Trial:- Appearance, Ex-prate procedure, summary and attendance of witnesses, trial, adjournments, interim order: commission, arrest or attachment before judgment, injunction and appointment of receiver, interests or costs, execution, the concepts, general principles, power for execution of decrees, procedure for execution(section 52-54), enforcement, arrest and detection(ss 55-56),attachment(ss 65-64), sale (ss 65-97), deliver of property, stay of execution.

UNIT - IV Suits in particular cases:- By or against government (ss 79-82), by aliens and by or against foreign rules or ambassadors (ss 83 -87A), public nuisance (ss9 1-93), suits by or against firm, mortgage, interpleaded suits, suits relating to public charities.

UNIT - V Appeals review, reference and revision:- Appeals from decree and order general provision relating to appeal, transfer of cases, restitution,caveat,inherent power of courts, law reform: law commission on civil procedure,amendments,law of limitation, the concepts the law assists the vigilant and not those who sleep over the rights.

Object:- Distinction with latches, acquiescence, prescription, extension and suspension of limitation, sufficient cause for not filling the proceedings, illness, mistaken legal advise, mistaken view of law, poverty minority and purdah, imprisonment, defective vakalatnama, legal liabilities, foreign rule of limitation: contract entered into under a foreign law, acknowledgement-essential requisites, continuing tort and continuing breach of contract.

RECOMMENDED BOOKS:-

1. Mulla-Code of civil procedure(1 999), Universal Delhi
2. C.K.Thacker- Code of civil procedure (1999), Universal Delhi
3. M.R. Mallick(ed.), B.B. Mitra – On limitation Act(1998) Eastern Lucknow
4. Majumdar P.K. and Kataria R.P. Commentary on the Code of Civil Procedure, 1908 (1998), Universal Delhi
5. Saha A.N. - The code of civil Procedure (2000). Universal Delhi
6. Sarkar's Law of Civil Procedure (2000), Universal Delhi
7. Universal' Code of Civil Procedure (2000).

L.L.B. PART-II SEMESTER - III
PAPER – VI DRAFTING OF PLEADING & CONVEYANCING
(CLINICAL-I)

UNIT – I

- a. **Drafting:** - General principles of drafting and relevant substantive rules shall be taught.
- b. **Pleading:-** Civil : plaint, w/s; interlocutory application; original petition; affidavit; execution petition; memorandum of appeal and revision; petition under article 226 and 32 of constitution of India criminal complaints; misc. petition; bail application; memorandum of appeal and revision conveyance- sale deed; mortgage deed; lease deed; gift deed; promissory note; power of attorney; and will- drafting of writ petition & PIL petition. 15 practical exercises in drafting carrying a total of 45 mark (3 marks for each). 15 practical exercises in conveyancing carrying a total of 45 mark (3 marks of each). The remaining 10 marks will be given in a Viva- voice.

RECOMMENDED BOOKS:-

1. Dale- Legislative Drafting
2. Bakshi P.M.- An Introduction to Legislation Drafting
3. Kalish Roy- Drafting & Pleading.
4. Majumdar- Law of Pleading, Conveyancing & Drafting.
5. Majumdar- Law of Conveyancing.
6. J.P. Singhal : Pleading, Judgments & Charges
7. Behera, B.K. : Better Drafting
8. Chaturvedi : Principles & Forms of Pleadings & Conveyancing